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PRESENTENCE REPORT**

Joint Pre-Plea Status Report and Guidelines-Manual Notice

**United States District Court for the Middle District of North Carolina United States v.
Mateo Serrano** Criminal Action No. SYN-MDNC-25-CR-0328 Docket Entry 18 Filed
November 13, 2025

Mateo Serrano and the fictional United States jointly report that they are preparing a written plea agreement and stipulated factual basis for possible presentation under Rule 11. Serrano's not-guilty plea remains in effect unless and until Judge Elara Venn accepts a new plea after a personal colloquy.

The parties request a hearing on November 18, 2025. They expect the proceeding to address Count One, trial rights, consequences, advisory sentencing, restitution, a claim-specific appellate waiver, and the factual basis. They ask for enough time to explain separately a broad sentencing waiver and an anticipated exception concerning complete denial of personal allocution.

No party requests an interpreter or accommodation. Celia Arden and Bram Ives will provide execution copies before the hearing. The report contains no private discovery, presentence material, operational offense detail, or prediction about acceptance. Existing release conditions and counsel's disclosure obligations remain unchanged.

Status of Plea Documents

The draft agreement identifies Count One as conspiracy to commit wire fraud under 18 U.S.C. §§ 1349 and 1343. It is expected to state all government promises, clarify that no sentence is guaranteed, preserve the district-court role objection, and define the scope of appellate rights. No oral promise or side agreement is intended.

The draft factual basis describes an abstract false-reimbursement conspiracy against fictional Meridian Community Supply Cooperative, a charged period ending November 2, 2025, exactly five criminally responsible participants, and a synthetic amount of \$186,400. It omits claim mechanics, credentials, accounts, routing information, and concealment practices.

The parties have not agreed that Serrano managed or supervised another participant. They have agreed that he may admit knowing participation without conceding the role adjustment. If the final documents differ materially from this status report, the executed writings and Serrano's sworn answers will control. The court should not infer assent from counsel's description alone.

Guidelines-Manual Notice

The parties give notice that the charged offense allegedly continued through November 2, 2025. Because that date follows the November 1 effective date, they presently expect the 2025 Guidelines Manual to govern under U.S.S.G. § 1B1.11. Neither side identifies a disadvantage requiring use of an earlier Manual as a whole.

This notice is not a Guidelines calculation. No probation report has been prepared, criminal history has not been independently verified, and the court has made no sentencing finding. The parties' preliminary estimates assume category I solely to explain the possible effect of the disputed adjustment.

The current § 3B1.1(b) inquiry requires management or supervision of at least one criminally responsible person when the numerical or extensive-activity predicate is met. The parties do not ask the court to rely on management of property, assets, or activities alone. Any legal or factual objection remains available through the presentence and sentencing process after a conviction or accepted plea.

Five Participants and Role Dispute

For purposes of the contemplated factual basis, the parties identify five fictional participants: Mateo Serrano, Alina Pared, Corin Bell, Darius Venn, and Nessa Holt. Serrano expects to admit that he knowingly joined the charged agreement and that the activity involved five criminally responsible people.

The government expects to argue later that certain interactions show Serrano supervised Pared. Serrano expects to contend that those interactions show shared coordination without authority over her. The plea agreement will not stipulate to either characterization. A probation recommendation and any response remain for the Rule 32 process.

The parties agree that the relative-role dispute is not an element of guilt. They also agree that public filings should remain non-actionable and should not reproduce communications in a way that teaches submission, concealment, or fund movement. The court may evaluate safe synthetic evidence if the role issue reaches sentencing. Nothing in this report assigns a burden, announces a winner, or converts the five-person count into an automatic enhancement.

Waiver and Rule 11 Topics

The contemplated agreement uses a broad waiver covering conviction and sentencing review, including an ordinary challenge to the advisory Guidelines under 18 U.S.C. § 3742. It separately preserves a narrow claim if the sentencing court completely denies Serrano the personal opportunity to allocute required by Rule 32(i)(4)(A)(ii).

At the hearing, the parties request that the court explain those two parts independently. Serrano should confirm that a district-court objection to the role adjustment can be preserved for sentencing while an ordinary appeal of that calculation remains within the proposed waiver. He should also confirm that the exception concerns complete denial of his own opportunity to speak, not every limitation or disagreement associated with allocution.

The proposed exception predicts no procedural error. The court remains expected to comply with Rule 32 at sentencing. Counsel's joint description is provided to facilitate a complete colloquy and may not replace Serrano's personal understanding. Only the final written clause accepted in open court will define the agreement.

Joint Requests and Certifications

The parties jointly ask the clerk to reserve November 18 for the proposed plea hearing, arrange a public transcript, and permit delivery of clean documents by 4:00 p.m. on the preceding day. Draft negotiations should not be filed. If a material disagreement remains, counsel will notify the court and request appropriate scheduling.

Arden certifies that Serrano authorized the status report, understands that he may maintain his not-guilty plea, and has had time to consult. Ives certifies that the government has disclosed no promise beyond the proposed writing and agrees that the role question remains unresolved.

Both counsel certify that the case is entirely synthetic and that this report contains no real personal identifier, financial account, investigative technique, or actionable offense instruction. The filing does not alter release conditions, establish guilt, waive an objection, or bind the sentencing court. It gives notice of the Manual premise and subjects requiring careful Rule 11 inquiry.

Celia Arden Fictional Defense Counsel

Bram Ives Fictional Government Counsel